Discuss Revisions to Board Policy EMB (Local)

Recommendation:

Trustee Dawson requested that the Board of Trustees consider and adopt revisions to Local Policy EMB *Miscellaneous Instructional Policies: Teaching About Controversial Issues*.

Explanation:

The revisions to the above-mentioned policies are recommended based on Legislation in the 87th, 88th, and 89th sessions and the revised Texas Education Code.

Policy Reference: BF Local

Subject Person Defined

As used in this policy, "Subject Persons" means those persons who (1) are employed by the District, (2) volunteer time or services on behalf of the District (3) directly interact with District students including contractors, vendors, and other individuals.

The District shall address controversial topics in an impartial and objective manner. Subject Persons ~~Teachers~~ shall not ~~use the classroom to~~ transmit personal beliefs regarding political or sectarian issues. Subject Persons and s~~S~~tudents ~~and educators~~ shall ensure that, to the extent possible, discussions are conducted fairly and courteously.

~~As used in this policy, "Subject Persons" means those persons who (1) are employed by the District, (2) volunteer time or services on behalf of the District or (3) directly interact with District students.~~

Controversial ~~Selection of~~ Topics

Unless required by state or federal law or the Texas Essential Knowledge and Skills, Subject Persons ~~Teachers~~ shall not be compelled to discuss widely debated and currently controversial issues of public policy or social affairs. However, in the event a Subject Person ~~teacher~~ chooses to discuss a topic described above or it is required by state or federal law or the Texas Essential Knowledge and Skills, the Subject Person ~~teacher~~ must explore that topic objectively and in a manner free from political bias. In guiding ~~classroom~~ discussion of controversial issues, Subject Persons ~~teachers~~ shall comply with the instructional requirements and prohibitions imposed under Texas law and by the District. In addition, the Subject Person ~~teacher~~ shall be certain that:

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1. The issue in question is within the range, knowledge, maturity, Texas Essential Knowledge and Skills for that grade level, and comprehension of the students.
2. The issue is current and educationally significant.
3. The consideration of the issue does not interfere with required instruction.
4. Sufficient relevant information on all aspects of the issue is provided.

If a Subject Person ~~teacher~~ is unsure about a topic of discussion or about the methods to employ, the Subject Person ~~teacher~~ may discuss the issue with the principal.

Classroom Discussion

In guiding ~~classroom~~ discussion of controversial issues, Subject Persons ~~teachers~~ shall:

1. Foster students' critical thinking skills.
2. Encourage discussion based on rational analysis.
3. Create an atmosphere in which students learn to respect others' opinions and disagree courteously.
4. Ensure that multiple viewpoints about the issue are presented by introducing an unexpressed viewpoint when necessary.
5. Avoid any attempt to coerce or persuade students to adopt the teacher's point of view.
6. Comply with the instructional requirements and prohibitions imposed under Texas law.

Holidays or Commemorative Months

In accordance with S.B. 12, (89th Texas Legislature), the District may acknowledge or teach the significance of state and federal holidays or commemorative months only if:

1. The federal or state holiday or commemorative month is established through a Presidential Proclamation, Congressional law or Resolution, Gubernatorial Proclamation, or Texas legislative law or Resolution; and
2. Fits into the themes of history and the stories of this state and the United States of America in accordance with the TEKS under Subchapter A, Chapter 28.

Certain Instructional Requirements and Prohibitions

Except as required by state or federal law, t~~T~~he District, including Subject Persons ~~its teachers, and administrators, or any third party,~~ shall not:

1. Require, teach, make part of a course or training, provide guidance or activities, discuss, require an understanding, or otherwise instruct any Subject Persons or students that:
   a. One race or sex is inherently superior to another race or sex;
   b. An individual, by virtue of the individual's race or sex, is inherently racist, sexist, or oppressive, whether consciously or unconsciously;
   c. An individual should be discriminated against or receive adverse treatment solely or partly because of the individual's race or sex;
   d. An individual's moral character, standing, or worth is partially or necessarily determined by the individual's race or sex;
   e. An individual, by virtue of the individual's race or sex, bears responsibility, blame, discomfort, anguish, ~~or~~ guilt, or any other form of psychological distress for actions committed by other members of the same race or sex;
   f. Meritocracy or traits such as a hard work ethic are racist or sexist or were created by members of a particular race or group to oppress members of another race or group;
   g. The delivery of slaves and the advent of slavery in the territory that is now the United States constituted the true founding of the United States; ~~or~~
   h. With respect to their relationship to American values, slavery and racism are anything other than deviations from, betrayals of, or failures to live up to the authentic founding principles of the United States, which include liberty and equality; or
   i. Make unpatriotic or anti-American sentiments.

2. Teach, instruct, train, introduce, discuss or require an understanding of The 1619 Project, which began as a compilation of essays, poems, and other works originally published in The New York Times Magazine in August 2019 but has become the impetus for the development of resources, programs, and curricula for educators; or

3. Teach, instruct, advocate, promote, or discuss any ideas, beliefs, concepts, theories, principles, rules, thoughts, or impressions that have any connection to, relationship with, refer to, are influenced by, or are otherwise consistent with so-called "Critical Race Theory" or systemic discrimination ideologies, including, but not limited to, those ideologies set forth in this section of this policy, as such ideologies have been understood, developed, taught, interpreted, defined/redefined by individuals, organizations, and others who have created, defined, redefined, interpreted, taught, instructed, advocated, promoted, or discussed or used to understand so-called "Critical Race Theory" or systemic discrimination ideologies. This subsection, along with subsection (1) and (2) above, shall be collectively referred to as "Critical Race Theory or Systemic Discrimination Ideologies" or "CRT/SDI"". Critical Race Theory and Systemic Discrimination Ideologies are generally defined as academic frameworks that laws, policies, and institutions create and maintain racial inequality, even when they appear neutral.

Except as required by state or federal law, no private funding shall be accepted by the District for the purposes of curriculum development, purchase or choice of curricular materials, teacher training, or professional development pertaining to the above topics or Board Policy CH (Local), EFA (Local) or EFB (Local).

Student Lobbying for Course Credit

In accordance with HB 3979 (87th Texas Legislature), no employee shall require, make part of a course, or award course grading or credit including extra credit for, student work for, affiliation with, or service learning in association with any organization engaged in lobbying for legislation at the local, state or federal level, or in social or public policy advocacy. No employee shall require, make part of a course, or award course grading or credit including extra credit for, political activism, lobbying, or efforts to persuade members of the legislative or executive branch to take specific actions by direct communication at the local, state or federal level, or any practicum or like activity involving social or public policy advocacy.

Instruction on Human Sexuality

No human sexuality instruction may be provided that is inconsistent with the Texas Essential Knowledge and Skills. In accordance with S.B. 12, (89th Texas Legislature), before a student may be provided with

human sexuality instruction by a Subject Person, the District must obtain the written consent of the student 's parent. A request for written consent under this subsection:

1. May not be included with any other notification or request for written consent provided to the parent, other than the notice, and
2. Must be provided to the parent not later than the 30th day before the date on which the human sexuality instruction begins.

The consent must include:

1. A clear, plain-language summary of the human sexuality curriculum (topics covered, objectives, grade-appropriateness).
2. Identification of whether outside speakers or third-party curriculum providers will be used.
3. Dates and class periods when the instruction will occur.
4. A statement that participation requires written parental consent under S.B. 12.
5. Confirmation that the notice is provided at least 30 days prior to instruction (to comply with subsection (2)).
6. An explanation of the right to review the instructional materials before consenting.
7. A statement of the parent's right to withhold consent without penalty to the student.
8. A reminder that parents may revoke consent at any time by written notice.
9. Clear checkboxes or signature lines for: "I give my consent for my child to participate in human sexuality instruction," or "I do not give my consent for my child to participate," and Space for parent/guardian signature and date.
10. Name and contact information for the administrator or office handling the curriculum (so parents can ask questions or review materials).

Pornographic Material Prohibition

Pornographic material includes, but not limited to, "Harmful material" as defined by Section 43.24, Penal Code; "indecent content" that portrays sexual or excretory organs or activities in a way that is patently offensive; "profane content" including grossly offensive language that is considered a public nuisance; a library material rated sexually explicit material by the selling library material vendor; "sexually explicit material" as defined by Education Code 33.021; library material containing indecent content or profane content; any material that is pervasively vulgar or educationally unsuitable as referenced in Board of Education v. Pico; any material that refers a person to an Internet website containing pornographic material as described in this section of this Policy, including by use of a link or QR code, as defined by Section 443.001 of the Texas Health and Safety Code, or any other material legally prohibited from inclusion in a public school library. [See EFB(LEGAL) and EMB(Local)]. The possession, acquisition, and purchase of pornographic library materials is prohibited.

Unless required by state or federal law or the Texas Essential Knowledge and Skills, instructional materials and library materials shall not include pornographic materials. Subject persons shall not instruct, or train any Subject Person to teach, support, or promote Pornographic Material.

Diversity, Equity, and Inclusion

Definitions

In accordance with S.B. 12, (89th Texas Legislature), diversity, equity, and inclusion duties means:

1. Influencing hiring or employment practices with respect to race, sex, color, or ethnicity except as necessary to comply with state or federal antidiscrimination laws;
2. Promoting differential treatment of or providing special benefits to individuals on the basis of race, color, or ethnicity;
3. Required any District employee ot student to engage in training, orientation, or therapy that presents any form of race or sex stereotyping or blame on the basis of race or sex. (HB 3979, 87th Texas Legislature).
4. Developing or implementing policies, procedures, trainings, activities, or programs that reference race, color, ethnicity, gender identity, or sexual orientation except: (A) for the purpose of student recruitment efforts by colleges and universities designated as historically

black colleges and universities in collaboration with school districts or open-enrollment charter schools; or (B) as necessary to comply with state or federal law.

5. Developing or producing Equity Audits based on race, color, ethnicity, gender identity, or sexual orientation, except the District may analyze school-based cause and take steps to eliminate unlawful discriminatory practices as necessary to address achievement gaps and differentials described by Texas Education Code Section 39.053.
6. Establishing offices or employment positions or assignments related to diversity, equity, and inclusion duties.

Inclusion Statement

In accordance with S.B. 12, (89th Texas Legislature), the District may not compel, require, induce, or solicit any person to provide a diversity, equity, and inclusion statement or giving preferential consideration to any person based on the provision of a diversity, equity, and inclusion statement.

Prohibition

In accordance with S.B. 12, (89th Texas Legislature), except as required by state or federal law, a school district: (1) may not assign diversity, equity, and inclusion duties to any person; and (2) shall prohibit a district employee, contractor, or volunteer from engaging in diversity, equity, and inclusion duties at, for, or on behalf of the district.

Contracting Clarification

Nothing in this Policy may be construed to limit or prohibit the District from contracting with historically underutilized businesses or businesses owned by members of a minority group or by women in accordance with applicable state law.

Social and Emotional Learning Concepts

Most traditional social and emotional learning (SEL) teachings are consistent with the District's general education goals, particularly concepts relating to the development of self-awareness, individualism, self-reliance, self-motivation, communication, conflict resolution, and interpersonal skills that are vital for academic, professional, and life success.

However, some SEL concepts can be potentially divisive, conflict with District policy, and be inconsistent with the District's education goals. As such, the District, including its Subject Persons, shall not teach, instruct, train or otherwise require any Subject Person or any individual or group, to adopt, support, or otherwise promote SEL concepts that are divisive, conflict with District policy, or are inconsistent with the District's education goals.

For the avoidance of doubt, the District will continue to support and promote the following ideologies and concepts, which are consistent with the positive components of SEL and with the general educational goals of the state and District: individualism; a rejection of victimhood mentality; conflict resolution techniques; aspiration to serve as entrepreneurs and spiritual and community leaders; financial self-sufficiency; importance of the nuclear family; liberty, hard work and perseverance as the basis for a successful society; and the virtues of self-discipline, forgiveness, patience, kindness, determination, hope, thankfulness, reliability, honesty, industry and responsibility.

Gender ~~Fluidity~~ Identity and Sexual Orientation

~~The District, including its Subject Persons, shall not teach, instruct, train or otherwise require any Subject Person or any individual or group, to adopt, support or otherwise promote Gender Fluidity (as defined herein). Additionally, Subject Persons shall not teach, instruct, train, or otherwise require any other Subject Person to teach, instruct, train, or otherwise communicate to any individual or group topics regarding sexual orientation or gender identity.~~

Definitions

For purposes of this policy, "Gender Identity~~Fluidity~~" means any belief, theory or ideology that:

1. Espouses the view that gender is merely a social construct;
2. Espouses the view that it is possible for a person to be any gender or none (i.e., non-binary);
3. Espouses the view that an individual's biological sex should attempt to be changed to "match" a gender different from that person's biological sex; and

4. Supports hormone therapy or other medical treatments or procedures to temporarily or permanently alter a person's body so that it "matches" a gender different from that person's biological sex.

Sexual orientation means sexual attraction a person feels toward others, such as attraction to the opposite sex, the same sex, both, or neither, including heterosexual, homosexual – attraction to the same sex, bisexual – attraction to more than one sex, or other orientations (e.g., asexual, pansexual).

Prohibitions

In accordance with S.B. 12, (89th Texas Legislature), the District shall not allow Subject Persons to provide instruction, guidance, activities, or programming regarding sexual orientation or gender identity or fluidity to students enrolled in prekindergarten through 12th grade.

A Subject Person may not use, or permit others to use, any District resource, funds, property, or personnel to adopt, support, or promote Gender Identity ~~Fluidity~~ or sexual orientation as defined herein.

This section may not be construed to:

1. Limit a student 's ability to engage in speech or expressive conduct protected by the First Amendment to the United States Constitution or by Section 8, Article I, Texas Constitution, that does not result in material disruption to school activities;
2. Limit the ability of a person who is authorized by the district to provide physical or mental health-related services to provide the services to a student, subject to any required parental consent; or
3. Prohibit an organization whose membership is restricted to one sex and whose mission does not advance a political or social agenda from meeting on a District.

Social Transitioning

In accordance with S.B. 12, (89th Texas Legislature), social transitioning means a person's transition from the person 's biological sex at birth to the opposite biological sex through the adoption of a different name, different pronouns, or other expressions of gender that deny or encourage a denial of the person 's biological sex at birth.

The District shall prohibit any Subject Person from assisting a student enrolled in the district with social transitioning, including by providing any information about social transitioning or providing guidelines intended to assist a person with social transitioning.

Pronoun Usage

The District ~~will not promote, require or encourage~~ shall prohibit the use of pronoun identifiers for students, or any Subject Persons ~~teachers or any other persons~~ in any manner that is inconsistent with the biological sex of such person as listed on:

1. The student's official birth certificate; or
2. If the student's official birth certificate is unobtainable, another government-issued record.

A Subject Person shall not be permitted to require or request a student to use a pronoun to refer to such Subject Person in a manner that is inconsistent with the biological sex of such Subject Person as listed on:

1. The Subject Person's official birth certificate; or
2. If the Subject Person's official birth certificate is unobtainable, another government-issued record.

Prohibited Terms

The District shall not permit its Subject Persons to use the term "Latinx" but shall instead use the terms "Hispanic," "Hispanics," "Latino," "Latinos," "Latina" or "Latinas."

The District shall not permit its Subject Persons to use the term "minor-attracted person" and shall require the use of the term "pedophile" for any reference to sexual acts or attraction to students. Any Instructional Materials that speak to or reference pedophilia should only refer to it as an abhorrent crime.

Student First Amendment Rights

Nothing in this Policy may be construed to affect a student 's rights under the First Amendment to the United States Constitution or Section 8, Article I, Texas Constitution.

Student or Parent Concerns

A parent of a student enrolled in the district or a district employee may report to the board of trustees a suspected violation of the social transitioning section of this ~~gender fluidity and/or pronoun usage~~ policy. The board shall oversee an investigation conducted by the Superintendent for any suspected violation and determine whether the violation occurred. ~~If the board determines that a district employee has violated this policy, the board shall immediately report the violation to the commissioner.~~ Additionally, if the Board determines that a district employee has assisted a student enrolled at the district with social transitioning, the board shall immediately report the violation to the Texas Commissioner of Education.

Any other grievances or concerns under this Policy ~~A student or parent with concerns regarding instruction about controversial issues~~ shall be directed to the complaint policy at DGBA (Local), FNG (Local), and GF (Local).

Discipline for Violations

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A District employee who knowingly engages in a violation of this Board policy or assigning to another person an act prohibited by this policy shall be cause for appropriate discipline, including termination of District employees and contractors. [See DFAA, DFBA, and DFCA for procedures for discipline, including termination, as appropriate.]

Subject Persons, who are not district employees that violate this Board policy may be immediately terminated or removed by the Superintendent or designee. [See CH Local]

Policy Distribution

The District shall make available a copy of this policy to all District Subject Persons.

Superintendent Authority

The Superintendent shall develop policies and procedures to ensure compliance with this Policy. The Superintendent shall certify to the Board of Trustees that the District complies with this Policy not later than February. 1, 2026.